

THE UNIVERSAL HOUSE OF JUSTICE

1991-12-09

1 dear bahá'í friends,
2 1991 which raises a number of questions concerning the exercise of your
3 functions in situations where the bahá'í laws are being violated. we have
4 been asked to provide the following response.
5 before commenting on your specific questions, the house of justice feels
6 it would be useful to review some aspects of the role of the local and Na-
7 tional Assemblies in regulating the behavior of the members of the bahá'í
8 community.

The aim of any Spiritual Assembly should be to develop a warm and

9 loving relationship with the believers in its community, so that it can most effectively
nurture and encourage them in the acquisition of a deeper
10 understanding of the teachings, and can assist them to follow the bahá'í
11 principles in their personal conduct. The Assembly should aspire to being
12 regarded by the members of the community as a loving parent, wise in its
understanding of the varying degrees of maturity of those entrusted to its
13 care, compassionate in dealing with the problems which arise as a result
14 of any shortcomings, ever prepared to guide them to the correct path, and very
patient as they strive to effect the necessary changes in their behavior.

15 Such an approach is far removed from the harshly judgmental and punitive
16 approach which so often characterizes the administration of law in the wider society.
The bahá'í application of justice, firmly rooted in spiritual principle
17 and animated by the desire to foster the spiritual development of the mem-
18 bers of the community, will increasingly be seen as a distinctive and highly
19 attractive feature of the revelation of bahá'u'lláh.

20 Such an attitude of forbearance, restraint, and patience toward believ-
21 ers who are striving to change practices and attitudes acquired in the years
22 before they entered the sanctuary of the cause of god should not blind a
23 National Assembly to the fact that, at this stage in the development of the

24 faith, there may well be some believers in the community whose behavior
25 necessitates that they be treated in a firm and uncompromising manner. 122.1

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124 29The following passage from a letter written on behalf of the guardian is of
125 broad applicability:

he feels that your Assembly must keep before its eyes the balance

126 specified by bahá'u'lláh, himself, in other words, justice, reward and

retribution. Although the cause is still young and tender, and many

127 of the believers inexperienced, and therefore loving forbearance is of-

128 ten called for in the place of harsh measures, this does not mean that a National
Spiritual Assembly can under any circumstances tolerate disgraceful conduct, flagrantly
contrary to our Teachings, on the part

of any of its members, whoever they may be and from wherever they

129 may come. . . .

130 The National Assembly is the guardian of the welfare of the faith,

131 a most sacred and heavy responsibility and one which is inescapable. They must be
ever vigilant, ever on the look-out, ever ready to take action, and, on all matters of
fundamental principle, refuse to com-promise for an instant. only in this way can the body of
the faith be

132 free of disease.

. . . we should not confuse the true believers with those who are

133 not quickened with the spirit of faith, have some ulterior motive, or are indifferent to
the reputation they have personally, and the damage

134 they may do the cause in the eyes of the public. There is all the dif-

ference in the world between these two categories, and your Assembly

135 must be ever watchful and ready to take action when necessary.

136 122-1

A survey of the letters written on behalf of the guardian shows that

137 he advised the National Spiritual Assemblies that they should resort to the

138 severe sanction of deprivation of a believer's administrative rights only for
139 such matters as "disgraceful conduct, flagrantly contrary to our Teachings,"
"seriously injuring the faith in the eyes of the public through his conduct or
140 flagrantly breaking the laws of god," "gross immorality and open opposi-
141 tion to the administrative functions of the faith, and disregard for the laws
142 of personal status," "conduct which is disgracing the cause," and "breaking
143 of laws, such as the consent of parents to marriage," or "acts of such an immoral
character as to damage the good name of the faith."

144 122-2

145 122-1. ldg, pp. 297-8.

146 122-2. ldg, p. 297; cc 2:1519; lg, no. 178; mc, pp. 39, 51.122.4a

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123 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

124 250it is clear that the removal of voting rights is a serious action which an
125 Assembly should take reluctantly when the circumstances require that the
126 bahá'í community or its reputation in the eyes of the public must be pro-
127 tected from the effects of an individual's behavior, and where the authority
128 of the laws of the faith must be upheld. it should be the hope and prayer of
129 the Assembly that the believer who has been administratively expelled from
130 membership in the bahá'í community will come to see that his behavior is
131 in violation of the teachings, will endeavor to rectify his conduct, and will
132 thus open the way to being welcomed back into the community so that he can lend
his support to the vital and glorious task of establishing the world

133 order of b ahá'u'lláh.

134 T urning now to your questions: you have enquired about believers con-

135 victed of an offense in the civil courts. As you know, the b ahá'í institutions

136 do not have a responsibility to enforce the criminal laws of a nation, although they do
quite properly exhort the believers to obedience to government, which includes obedience to
its laws. violations of criminal law are handled

137 by the civil courts of a country and enforced by its civil administration. The

138 fact that a believer has been charged with a criminal offense, or is suspected
139 of having committed such an offense, or is convicted by the court, should not
automatically result in the application of bahá'í sanctions. each case is
140 to be considered on its own merits, and in the light of the aforementioned
141 considerations pertaining to the effect on the bahá'í community and its
142 reputation. for example, an Assembly would be most unlikely to consider
143 imposition of sanctions on a bahá'í convicted of violating the laws regulat-
144 ing automobile traffic flow, but it might well consider that a person known
145 to be a bahá'í convicted of selling narcotic drugs had brought disgrace to the
146 name of the faith and damaged its reputation before the public.

when an Assembly is aware that a believer is charged with a criminal

147 offense, normally it should not pass judgment on the matter until a decision has been
given in the courts, at which time it would consider whether it should impose administrative
sanctions. There may be cases, however, when an Assembly is justified in taking certain
actions to protect the interests of

148 the cause. generally, the Assembly would regard the decision of the court
149 as being valid in determining whether or not the bahá'í was guilty of the
150 stated offense, and would not undertake its own independent investigation. however,
there may be special circumstances associated with a particular

151 case, or with the reputation of the civil judicial system, which would incline
152 an Assembly to decide that the verdict of the court should not be accepted 122.6

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124 251 as a basis for bahá'í administrative action without further investigation by
125 the Assembly; it is left to the Assembly to make that determination.

126 when an allegation is made that a believer has violated bahá'í law, irre-
127 spective of the consequence in civil law, the process of investigation calls for

128 a diligent and persistent effort by the Assembly to ascertain the facts, and for
wholehearted cooperation of all concerned in the search for truth. believers

129 called upon to provide information should, if necessary, be reminded of the
responsibility they bear to speak the truth and of the spiritual consequences of a failure to do
so. 'Abdu'l-bahá asserts:

T ruthfulness is the foundation of all human virtues. without truth-

130 fulness, progress and success, in all the worlds of god, are impossible

for any soul. when this holy attribute is established in man, all the

131 divine qualities will also be acquired.

132 122-3

133 if this “holy attribute” should adorn the behavior of believers toward others,

134 how much more should it characterize the statements which a bahá’í makes

135 to a divinely ordained institution.

136 The prospect of a believer’s displaying an attitude of hostility, when be-

137 ing interviewed by a Spiritual Assembly or its representatives who are seek-ing to
determine the facts of a matter, is abhorrent. All believers are strongly

138 enjoined to have the utmost respect for the Assemblies, to cooperate fully

139 with them, and to support their decisions. An Assembly enquiring into a matter
should not allow itself to be deterred by the hostility of a believer who is withholding
relevant information; it should appeal to him for coop-

140 eration, remind him forcefully of his responsibilities and, in extreme cases

141 such as threats made to the investigators, warn him of the administrative
consequences of the persistence of his deplorable conduct.

when an Assembly comes to the point where it must make a decision in

142 the face of conflicting assertions and insistent denials, it might well recall the advice
of the guardian:

143 . . . when they are called upon to arrive at a certain decision, they should, after
dispassionate, anxious, and cordial consultation, turn

144 122-3. Adj, ¶39.122.9

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122 11a

123 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

124 252to god in prayer, and with earnestness and conviction and courage

record their vote. . . .122-4

125 A believer who is distressed by the decision reached by an Assembly as

126 a result of its investigation may well find comfort and reassurance in the

127 following passage from a letter written on behalf of Shoghi Effendi:

128 The Assembly may make a mistake, but, as the master pointed out,

if the community does not abide by its decisions, or the individual

129 bahá'í, the result is worse, as it undermines the very institution which

must be strengthened in order to uphold the principles and laws of

the faith. he tells us god will right the wrongs done. we must have

confidence in this and obey our Assemblies. . . .122-5

130 As regards the need to warn an individual before his voting rights are re-moved, the basic principle is expressed in the following passage written on

131 behalf of the guardian:

. . . before anyone is deprived of their voting rights, they should

be consulted with and lovingly admonished at first, given repeated

warnings if they do not mend their immoral ways, or whatever other

132 extremely serious misdemeanor they are committing, and finally, after these repeated warnings, be deprived of their voting rights.

133 122-6

134 There are, however, many different ways in which this is applied, depending upon the nature of the offense and the situation in each case.

135 for example, when there is an isolated but serious offense, such as that of

136 a bahá'í woman who indulges in one act of immorality as a result of which

137 she gives birth to a child out of wedlock, this is no grounds for the removal of administrative rights. but the Assembly, when it learns of the situation,

138 should certainly arrange for the believer to be met and consulted with, to assist her in her difficulties, to ascertain her attitude to the situation. if she

139 122-4. bA, p. 64.

140 122-5. cc 2:1401.122-6. mc, p. 51.122.12

122 12a

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124 25has no regret for the offense and indicates that she feels free to repeat it in

125 future, she will need to be educated in the teachings, counseled and, if she
126 does not change her attitude, to be warned that a continuation of such
127 actions would cause forfeiture of her administrative rights. if, however, she
128 is contrite and is determined to lead a moral life henceforth, there would be no
question of sanctions. The same course would be followed with the man
129 involved, if he were a b ahá'í.

Another example would involve, not a single offense, but a continuing

130 course of behavior, such as flagrant and continuing violation of the law
131 prohibiting the consumption of alcoholic beverages. in such a situation the
132 Assembly should explain the law to the believer, urge him to obey it, encour-age and
assist him and warn him if necessary. if the response is favorable
133 there would, again, be no need to deprive him of his administrative rights,
134 but, if the believer is obdurate or continues in his course of misbehavior, he
135 should, according to the circumstances of each case, be warned and warned again,
with increasing severity and a time set for him to rectify his conduct. if this produces no
amelioration, he would have to lose his administrative
136 rights.

137 A third example involves the taking of a definite step which violates a
138 clear law with which the believer is familiar. in this instance, the Assembly
139 may conclude that the believer has been warned repeatedly of the conse-
140 quences of such behavior through statements in widely circulated bahá'í
141 publications or in the deepening which a member of the community might
142 reasonably be expected to have received. into this category would fall the
143 offenses against the bahá'í requirement of parental consent to marriage, and
144 the violations of law about which general warnings have been given in your
newsletter.

145 circumstances may arise where the offense is so serious that immediate
146 action is required by the National Assembly to protect the faith. in this
147 connection, it is stated in a letter written on behalf of the g uardian:
148 you should vigilantly watch over and protect the interests of the bahá'í

community, and the moment you see that any of the . . . bahá'ís

149 . . . are acting in a way to bring disgrace upon the name of the faith,

warn them, and, if necessary, deprive them immediately of their vot-

150 ing rights if they refuse to change their ways. only in this way can the
151 purity of the faith be preserved. compromise and weak measures will 122.14

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122 16a

123 m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

124 25obscure the vision of its followers, sap its strength, lower it in the eyes

of the public and prevent it from making any progress.122-7

125 the deprivation of voting rights, an Assembly should bear in mind that,
126 at the present time, when bahá'í laws are being progressively applied and
127 a sizeable proportion of a community consists of newly declared believers,
128 an Assembly may accept ignorance of the bahá'í law as a valid excuse when
129 it is convinced that such ignorance existed; great wisdom is required in the
130 application of this provision, since it is not unknown for a believer guilty of
131 flagrant misconduct to attempt to escape the administrative consequence of his
behavior through a fervent but spurious claim of ignorance of the law.

132 in deciding whether or not to remove voting rights, every case should be
133 considered on its merits and in light of the particular circumstances. The purpose of
the administrative sanction should be borne clearly in mind in deciding how much weight to
give to factors such as the passage of time,

134 the extent to which the individual concerned has experienced an adverse
135 reaction in the bahá'í community, the degree of suffering and contrition
136 exhibited by the believer whose status is being questioned, his stature in the bahá'í
community or the wider society, and media publicity of his delin-

137 quent behavior. while there is room for compassion, this should not deflect

138 you from giving due consideration to the responsibility you bear to protect the
community and its good name, and to uphold the authority of bahá'í

139 law.

140 it is within the discretion of a National Spiritual Assembly to decide

141 whether to notify the community when a believer has been deprived of his
administrative rights; the Assembly is also free to decide how such a notifi-

142 cation is to be made, and whether or not the reasons for the deprivation are

143 to be disclosed. Such decisions might be made with regard to the purposes which
 would be served by such an announcement, and the benefit to the community of this
 knowledge. if a believer advises you of an appeal to the
 144 universal house of justice against your decision to withdraw his voting
 145 rights, he remains without these rights while the merit of his appeal is being assessed
 by the house of justice; it would generally be preferable not to
 146 122-7 . l d g , p . 297 .122.17
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 123 1986–1992 • T h e S i x Y e a r P l a n
 124 255make an announcement to the community about his loss of voting rights
 125 while the appeal is being considered, but special circumstances, such as the
 126 imperative need to protect the bahá'í community from his actions, could
 127 compel you to do otherwise.
 128 when a believer is deprived of his administrative rights, he is entitled
 129 to clear information on the requirements to be fulfilled in order that his rights may be
 restored; these may include the passage of a prescribed period
 130 of time, the performance of certain remedial actions, or the alteration of an attitude or
 pattern of behavior which is considered unworthy or harm-ful. A condition for the
 restoration of voting rights is that the believer be
 131 repentant, as evidenced by his statement to that effect or by his demeanor
 132 and conduct. A believer should not feel compelled to admit his past errors in order to
 be regarded as repentant; you can infer repentance from his be-
 133 havior, his manifest spirit of cooperation with the Assembly, and his evident
 134 desire to scrupulously adhere to the teachings. Should he display a rebellious or
 resentful attitude, or be contemptuous of bahá'í law and the consequence
 135 of violation of its provisions, you would be justified in denying him the
 136 right to reenter the b ahá'í community.
 137 countered by National Spiritual Assemblies in administering bahá'í law at
 138 this period in history when the world is afflicted with lawlessness, moral decadence,
 and confusion. The institutions of the cause are called upon
 139 to guide and regulate the conduct of the believers so that the bahá'í com-
 140 munity may offer, to both seeker and skeptic, a compelling proof of the transforming
 power of the revelation of bahá'u'lláh. by this means will

141 humankind be led to accept the truth of his claim, and will thereby be
142 enabled to find that unity and harmony for which it is so desperately yearn-
143 ing. upon this foundation will be constructed the future world civilization
144 which humanity is destined to attain.
145 with loving b ahá'í greetings,

Department of tHe secretariat122.20

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124 256123

Formation of Three New Spiritual Assemblies

[signed: The Universal House of Justice]